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Iyiola Solanke

EU Law

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EU Law

Dr Iyiola Solanke

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List of Abbreviations

ADR Alternative dispute resolution	EEC European Economic Community
AFJS Area of Freedom, Justice and Security	EFTA European Free Trade Association
AG Advocate General	EMU European and Monetary Union
AsG Advocates-General	EO European Ombudsman
AM Absolute majority	EP European Parliament
CAP Common Agricultural Policy	EPI European Parliament Initiative
CC Conciliation Committee	EPPO European Public Prosecutor's Office
CCP Central contact point	GAC General Affairs Council
CCP Common Commercial Policy	GATT General Agreement on Tariffs and Trade
CD Citizenship Directive	GC General Court
CEE Charges having equivalent effect	GCC German Constitutional Court
CEEC Committee of European Economic Co-operation	HR High Representative of the Union for Foreign Affairs and Security Policy
CFI Court of First Instance	IAB Impact Assessment Board
CFP Common Fisheries Policy	ICCPR International Covenant on Civil and Political Rights
CFR Charter of Fundamental Rights	ICERD International Convention on the Elimination of All Forms of Racial Discrimination
CFSP Common Foreign and Security Policy	ICTY UN International Criminal Tribunal on Former Yugoslavia
CHR Commission on Human Rights	IGC Intergovernmental conference
CISA Convention Implementing the Schengen Convention	IMPALA Independent Music Publishers and Labels Association
CJ Court of Justice	INTI Integration of Third Country National
CJEU Court of Justice of the European Union	JCMS <i>Journal of Common Market Studies</i>
CM Council of Ministers	JHA Justice and Home Affairs
COMREG Committee of the Regions	LT Lisbon Treaty
COOL Country of origin labelling	MEP Member of the European Parliament
COREPER The Permanent Representatives Committee of the EU	MEQR Measures Equivalent to a Quantitative Restriction
CP Common Position	MS Member state
CSFP Common and Foreign Security Policy	NGO Non-governmental organisation
CST Civil Service Tribunal	OEEC Organisation of European Economic Co-operation
CT Constitutional Treaty	OFM Other family members
DG Directorate General	OJ Official Journal of the European Union
EC European Council	OLP Ordinary Legislative Procedure
ECHR European Court of Human Rights	OMC Open method of coordination
ECI European Citizen's Initiative	OOPEC Office for Official Publications of the EC
ECJ European Court of Justice	
ECN European Competition Network	
ECOSOC Economic and Social Committee	
ECSC European Coal and Steel Community	
EctHR European Court of Human Rights	
ECU European Currency Unit	
EEA European Economic Area	

PCI Parliamentary Committee of Inquiry
QMV Qualified majority voting
QR Quantitative restrictions
SEA Single European Act
SGEI Services of general economic interest
SIS Schengen Information System
SSGI Social services of general interest

TCN Third country national
TEU Treaty on European Union
TFEU Treaty on the Functioning of the
European Union
UNDHR United Nations Declaration of
Human Rights
UNSC United Nations Security Council

Preface

The CJEU is the busiest court in the world, producing up to and sometimes more than 500 decisions in a single year. The student of EU law should be clear that they are about to enter a world of law that has its own legal instruments, law-making rules, principles and concepts and priorities. Yet this world is not totally unknown: EU law covers topics familiar from the first year of an undergraduate law degree, such as administrative law, institutional law and constitutional law. At the same time, EU law introduces learners to new areas of law that may be pursued in later years at undergraduate or postgraduate level, such as competition law, immigration law, trade law or equality and human rights law. Study of EU law therefore builds upon past learning while creating a base for future studies.

The study of EU law can be a challenge. These topics are often modules and degree programmes in their own right. Furthermore, European integration is an ongoing project thus change is continual and keeping abreast of the judicial decisions requires stamina and determination. In addition, misleading reports in the press can create confusion.¹ Despite these challenges, the material can be mastered. The purpose of this book is to help you to succeed in this, by encouraging reflection, debate and practical application alongside assimilation of new rules, concepts and principles.

The legal framework that has supported and sometimes led European integration is the focus of this book. The exploration will of necessity consider more than EU law: EU integration is both politics and economics;² economics and politics are both method and motivation. Law has been effective in perforating the boundaries of the nation state, making them permeable to create the internal market, yet has not fully erased them. All three – law, politics and economics – have played a role in the complex process by which the member states have partially opened up their markets and welfare systems. Member states have used European institutions to both promote and prevent over-intrusion of global forces (internationalisation and liberalisation)³ thus national differences persist, even if the challenges are common.⁴ Law has also in particular played a role where compromise and negotiation has failed or stalled.

My objective in writing this book was to present EU law in a way that is detailed and comprehensive, enjoyable to read and clear to understand. The story of the EU and EU law is full of controversy, conflict and change. However, we can only read about the lawmakers of the past – we live EU law: it is being made and remade in our lifetime. Whether it concerns family reunification or the sale of seal products, smoking or what

¹ <http://www.thesun.co.uk/sol/homepage/news/4984447/Correction.html>, <http://ukhumanrightsblog.com/2013/06/26/the-sun-gets-regulator-reprimand-and-apologises-for-misleading-on-european-human-rights/#more-18879>

² Erik Jones and Amy Verdun (eds) 'The Political Economy of European Integration: theory and analysis', Routledge, 2005, p. 1

³ Maria Green Cowles, in Jones and Verdun, 2005, p. 26

⁴ Scharpf and Schmidt 'Welfare and Work in the Open Economy, Vol 2: Diverse responses to Common Challenges' Oxford University Press, 2000

we eat, EU law affects how we live and what we do – as individuals and through our politicians – affects it. It is a topic that demands the attention of any aspiring lawyer, CEO or politician within the EU as well as beyond.

In order to remind the reader of the world within which EU law lives, each chapter begins with an opening ‘scenario’: this might be the details of a case, a quote from a newspaper or journal article or an extract from an EU legal instrument or official report. The purpose of this opening is to provide a context for the legal information that follows and a backdrop for the rules to be discussed. Throughout the chapter you will be invited to reflect upon the rules presented, often in light of this opening setting. These moments of reflection enable you to practise the application of EU law, to analyse it or – equally important – encourage you to develop an opinion. They also offer a possibility for discussion of a specific issue with your peers, either in class or in the cafe. Finally, they act as an intellectual hiatus, enabling you to ensure understanding of the material just read before moving onto the next section. In summary, the opening scenario acts as a factual background upon which to engage with EU law and the moments of reflection offer points for application, analysis and debate. By making EU law less abstract in this way, my hope is to make it more approachable and engaging. It may never become your favourite area of law, but I hope that you enjoy exploring it.

A quick word on terminology: you will note as you read through the text that both ‘European Community’ and ‘European Union’ are used. The word ‘Community’ appears where it is used in older case law and in some scholarly works. However this is a historic term and the current title is now ‘European Union’. Also, a word is necessary on the Union courts: when there was just one court it was called the ‘ECJ’ (European Court of Justice) – this name appears in some extracts. The current collective name for all three European Courts is the Court of Justice of the European Union (CJEU). Abbreviations such as CJ (Court of Justice), GC (General Court) or CST (Civil Service Tribunal) are used when referring to decisions of a specific court. Likewise, the pre-Lisbon Treaty numbering has only been used in extracts and citations, with the new Treaty numbering provided alongside.

With the CJEU producing so many decisions annually, writing a single-author tome covering the core constitutional, institutional and substantive aspects of EU law gets harder every year. If I have managed to do this at all successfully, it has only been due to the support of many people, especially my ever-patient editors at Pearson Press – Cheryl Cheasley, Holly Gardner, Owen Knight, Helen Leech, Roxanne Selby and Jennifer Sargunar: a big thanks to all of you for your care for this project. I am also grateful for the team of anonymous reviewers whose encouraging comments accompanied me as I wrote. My efficient editors–Jim Cauter and Linda Dhondy–added important final touches. Beyond the editorial team, I would like to thank my students for trusting me to teach them something worthwhile, as well as colleagues, collaborators and friends in academia, civil society and legal practice who have nurtured my passion for this topic – a special thank you goes to Professor Damian Chalmers, who many years ago inspired me to explore EU law. Finally, heartfelt thanks go to my family near and far, for inspiring me everyday with their faith, courage and love.

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Table of Equivalences

Attached to the consolidated version of the Treaty on European Union (OJ C 326, 26.10.2012)
at pg 196.

Treaty on European Union

Old numbering of the Treaty on European Union	New numbering of the Treaty on European Union
TITLE I – COMMON PROVISIONS	TITLE I – COMMON PROVISIONS
Article 1	Article 1
	Article 2
Article 2	Article 3
Article 3 (repealed) [2]	
	Article 4
	Article 5 [3]
Article 4 (repealed) [4]	
Article 5 (repealed) [5]	
Article 6	Article 6
Article 7	Article 7
	Article 8
TITLE II – PROVISIONS AMENDING THE TREATY ESTABLISHING THE EUROPEAN ECONOMIC COMMUNITY WITH A VIEW TO ESTABLISHING THE EUROPEAN COMMUNITY	TITLE II – PROVISIONS ON DEMOCRATIC PRINCIPLES
Article 8 (repealed) [6]	Article 9
	Article 10 [7]
	Article 11
	Article 12

- (1) Tables of equivalences as referred to in Article 5 of the Treaty of Lisbon. The original centre column, which set out the intermediate numbering as used in that Treaty, has been omitted.
- (2) Replaced, in substance, by Article 7 of the Treaty on the Functioning of the European Union (“TFEU”) and by Articles 13(1) and 21, paragraph 3, second subparagraph of the Treaty on European Union (“TEU”).
- (3) Replaces Article 5 of the Treaty establishing the European Community (“TEC”).
- (4) Replaced, in substance, by Article 15.
- (5) Replaced, in substance, by Article 13, paragraph 2.
- (6) Article 8 TEU, which was in force until the entry into force of the Treaty of Lisbon (hereinafter “current”), amended the TEC. Those amendments are incorporated into the latter Treaty and Article 8 is repealed. Its number is used to insert a new provision.
- (7) Paragraph 4 replaces, in substance, the first subparagraph of Article 191 TEC.

(continued)

Treaty on European Union (*continued*)

TITLE III - PROVISIONS AMENDING THE TREATY ESTABLISHING THE EUROPEAN COAL AND STEEL COMMUNITY	TITLE III – PROVISIONS ON THE INSTITUTIONS
Article 9 (repealed) [8]	Article 13
	Article 14 [9]
	Article 15 [10]
	Article 16 [11]
	Article 17 [12]
	Article 18
	Article 19 [13]
TITLE IV - PROVISIONS AMENDING THE TREATY ESTABLISHING THE EUROPEAN ATOMIC ENERGY COMMUNITY	TITLE IV – PROVISIONS ON ENHANCED COOPERATION
Article 10 (repealed) [14] Articles 27a to 27e (replaced) Articles 40 to 40b (replaced) Articles 43 to 45 (replaced)	Article 20 [15]

(8) The current Article 9 TEU amended the Treaty establishing the European Coal and Steel Community. This latter expired on 23 July 2002. Article 9 is repealed and the number thereof is used to insert another provision.

(9)

- Paragraphs 1 and 2 replace, in substance, Article 189 TEC;
- paragraphs 1 to 3 replace, in substance, paragraphs 1 to 3 of Article 190 TEC;
- paragraph 1 replaces, in substance, the first subparagraph of Article 192 TEC;
- paragraph 4 replaces, in substance, the first subparagraph of Article 197 TEC.

(10) Replaces, in substance, Article 4.

(11)

- Paragraph 1 replaces, in substance, the first and second indents of Article 202 TEC;
- paragraphs 2 and 9 replace, in substance, Article 203 TEC;
- paragraphs 4 and 5 replace, in substance, paragraphs 2 and 4 of Article 205 TEC.

(12)

- Paragraph 1 replaces, in substance, Article 211 TEC;
- paragraphs 3 and 7 replace, in substance, Article 214 TEC.
- paragraph 6 replaces, in substance, paragraphs 1, 3 and 4 of Article 217 TEC.

(13)

- Replaces, in substance, Article 220 TEC.
- the second subparagraph of paragraph 2 replaces, in substance, the first subparagraph of Article 221 TEC.

(14) The current Article 10 TEU amended the Treaty establishing the European Atomic Energy Community. Those amendments are incorporated into the Treaty of Lisbon. Article 10 is repealed and the number thereof is used to insert another provision.

(15) Also replaces Articles 11 and 11a TEC.

Treaty on European Union (*continued*)

TITLE V – PROVISIONS ON A COMMON FOREIGN AND SECURITY POLICY	TITLE V – GENERAL PROVISIONS ON THE UNION'S EXTERNAL ACTION AND SPECIFIC PROVISIONS ON THE COMMON FOREIGN AND SECURITY POLICY
	Chapter 1 – General provisions on the Union's external action
	Article 21
	Article 22
	Chapter 2 – Specific provisions on the common foreign and security policy
	Section 1 – Common provisions
	Article 23
Article 11	Article 24
Article 12	Article 25
Article 13	Article 26
	Article 27
Article 14	Article 28
Article 15	Article 29
Article 22 (moved)	Article 30
Article 23 (moved)	Article 31
Article 16	Article 32
Article 17 (moved)	Article 42
Article 18	Article 33
Article 19	Article 34
Article 20	Article 35
Article 21	Article 36
Article 22 (moved)	Article 30
Article 23 (moved)	Article 31
Article 24	Article 37
Article 25	Article 38
	Article 39
Article 47 (moved)	Article 40
Article 26 (repealed)	
Article 27 (repealed)	
Article 27a (replaced) [16]	Article 20
Article 27b (replaced) [16]	Article 20
Article 27c (replaced) [16]	Article 20
Article 27d (replaced) [16]	Article 20
Article 27e (replaced) [16]	Article 20

(16) The current Articles 27a to 27e, on enhanced cooperation, are also replaced by Articles 326 to 334 TFEU.

(*continued*)

Treaty on European Union (*continued*)

Article 28	Article 41
	Section 2 – Provisions on the common security and defence policy
Article 17 (moved)	Article 42
	Article 43
	Article 44
	Article 45
	Article 46
TITLE VI – PROVISIONS ON POLICE AND JUDICIAL COOPERATION IN CRIMINAL MATTERS (repealed) [17]	
Article 29 (replaced) [18]	
Article 30 (replaced) [19]	
Article 31 (replaced) [20]	
Article 32 (replaced) [21]	
Article 33 (replaced) [22]	
Article 34 (repealed)	
Article 35 (repealed)	
Article 36 (replaced) [23]	
Article 37 (repealed)	
Article 38 (repealed)	
Article 39 (repealed)	
Article 40 (replaced) [24]	Article 20
Article 40 A (replaced) [24]	Article 20
Article 40 B (replaced) [24]	Article 20
Article 41 (repealed)	
Article 42 (repealed)	

(17) The current provisions of Title VI of the TEU, on police and judicial cooperation in criminal matters, are replaced by the provisions of Chapters 1, 5 and 5 of Title IV of Part Three of the TFEU.

(18) Replaced by Article 67 TFEU.

(19) Replaced by Articles 87 and 88 TFEU.

(20) Replaced by Articles 82, 83 and 85 TFEU.

(21) Replaced by Article 89 TFEU.

(22) Replaced by Article 72 TFEU.

(23) Replaced by Article 71 TFEU.

(24) The current Articles 40 to 40 B TEU, on enhanced cooperation, are also replaced by Articles 326 to 334 TFEU.

Treaty on the Functioning of the European Union (*continued*)

TITLE VII – PROVISIONS ON ENHANCED COOPERATION (replaced) [25]	TITLE IV – PROVISIONS ON ENHANCED COOPERATION
Article 43 (replaced) [25]	Article 20
Article 43 A (replaced) [25]	Article 20
Article 43 B (replaced) [25]	Article 20
Article 44 (replaced) [25]	Article 20
Article 44 A (replaced) [25]	Article 20
Article 45 (replaced) [25]	Article 20
TITRE VIII – FINAL PROVISIONS	TITLE VI – FINAL PROVISIONS
Article 46 (repealed)	
	Article 47
Article 47 (replaced)	Article 40
Article 48	Article 48
Article 49	Article 49
	Article 50
	Article 51
	Article 52
Article 50 (repealed)	
Article 51	Article 53
Article 52	Article 54
Article 53	Article 55

Treaty on the Functioning of the European Union

Old numbering of the Treaty establishing the European Community	New numbering of the Treaty on the Functioning of the European Union
PART ONE – PRINCIPLES	PART ONE – PRINCIPLES
Article 1 (repealed)	
	Article 1
Article 2 (repealed) [26]	
	Title I – Categories and areas of union competence
	Article 2
	Article 3
	Article 4
	Article 5

(25) The current Articles 43 to 45 and Title VII of the TEU, on enhanced cooperation, are also replaced by Articles 326 to 334 TFEU.

(26) Replaced, in substance, by Article 3 TEU.

(*continued*)

Treaty on the Functioning of the European Union (*continued*)

	Article 6
	Title II – Provisions having general application
	Article 7
Article 3, paragraph 1 (repealed) [27]	
Article 3, paragraph 2	Article 8
Article 4 (moved)	Article 119
Article 5 (replaced) [28]	
	Article 9
	Article 10
Article 6	Article 11
Article 153, paragraph 2 (moved)	Article 12
	Article 13 [29]
Article 7 (repealed) [30]	
Article 8 (repealed) [31]	
Article 9 (repealed)	
Article 10 (repealed) [32]	
Article 11 (replaced) [33]	Articles 326 to 334
Article 11a (replaced) [33]	Articles 326 to 334
Article 12 (repealed)	Article 18
Article 13 (moved)	Article 19
Article 14 (moved)	Article 26
Article 15 (moved)	Article 27
Article 16	Article 14
Article 255 (moved)	Article 15
Article 286 (moved)	Article 16
	Article 17
PART TWO – CITIZENSHIP OF THE UNION	PART TWO – NON-DISCRIMINATION AND CITIZENSHIP OF THE UNION
Article 12 (moved)	Article 18
Article 13 (moved)	Article 19
Article 17	Article 20
Article 18	Article 21

(27) Replaced, in substance, by Articles 3 to 6 TFEU.

(28) Replaced, in substance, by Article 5 TEU.

(29) Insertion of the operative part of the protocol on protection and welfare of animals.

(30) Replaced, in substance, by Article 13 TEU.

(31) Replaced, in substance, by Article 13 TEU and Article 282, paragraph 1, TFEU.

(32) Replaced, in substance, by Article 4, paragraph 3, TEU.

(33) Also replaced by Article 20 TEU.

Treaty on the Functioning of the European Union (*continued*)

Article 19	Article 22
Article 20	Article 23
Article 21	Article 24
Article 22	Article 25
PART THREE – COMMUNITY POLICIES	PART THREE – POLICIES AND INTERNAL ACTIONS OF THE UNION
	Title I – The internal market
Article 14 (moved)	Article 26
Article 15 (moved)	Article 27
Title I – Free movement of goods	Title II – Free movement of goods
Article 23	Article 28
Article 24	Article 29
Chapter 1 – The customs union	Chapter 1 – The customs union
Article 25	Article 30
Article 26	Article 31
Article 27	Article 32
Part Three, Title X, Customs cooperation (moved)	Chapter 2 – Customs cooperation
Article 135 (moved)	Article 33
Chapter 2 – Prohibition of quantitative restrictions between Member States	Chapter 3 – Prohibition of quantitative restrictions between Member States
Article 28	Article 34
Article 29	Article 35
Article 30	Article 36
Article 31	Article 37
Title II - Agriculture	Title III – Agriculture and fisheries
Article 32	Article 38
Article 33	Article 39
Article 34	Article 40
Article 35	Article 41
Article 36	Article 42
Article 37	Article 43
Article 38	Article 44
Title III – Free movement of persons, services and capital	Title IV – Free movement of persons, services and capital
Chapter 1 – Workers	Chapter 1 – Workers
Article 39	Article 45
Article 40	Article 46
Article 41	Article 47
Article 42	Article 48

(continued)

Treaty on the Functioning of the European Union (*continued*)

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Article 44	Article 50
Article 45	Article 51
Article 46	Article 52
Article 47	Article 53
Article 48	Article 54
Article 294 (moved)	Article 55
Chapter 3 – Services	Chapter 3 – Services
Article 49	Article 56
Article 50	Article 57
Article 51	Article 58
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Article 53	Article 60
Article 54	Article 61
Article 55	Article 62
Chapter 4 – Capital and payments	Chapter 4 – Capital and payments
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	Article 69
	Article 70
	Article 71 [35]
Article 64, paragraph 1 (replaced)	Article 72 [36]
	Article 73
Article 66 (replaced)	Article 74
Article 60 (moved)	Article 75
	Article 76

(34) Also replaces the current Article 29 TEU.

(35) Also replaces the current Article 36 TEU.

(36) Also replaces the current Article 33 TEU.

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	Chapter 2 – Policies on border checks, asylum and immigration
Article 62	Article 77
Article 63, points 1 et 2, and Article 64, paragraph 2 [37]	Article 78
Article 63, points 3 and 4	Article 79
	Article 80
Article 64, paragraph 1 (replaced)	Article 72
	Chapter 3 – Judicial cooperation in civil matters
Article 65	Article 81
Article 66 (replaced)	Article 74
Article 67 (repealed)	
Article 68 (repealed)	
Article 69 (repealed)	
	Chapter 4 – Judicial cooperation in criminal matters
	Article 82 [39]
	Article 83 [39]
	Article 84
	Article 85 [39]
	Article 86
	Chapter 5 – Police cooperation
	Article 87 [40]
	Article 88 [40]
	Article 89 [41]
Title V – Transport	Title VI – Transport
Article 70	Article 90
Article 71	Article 91

(37) Points 1 and 2 of Article 63 EC are replaced by paragraphs 1 and 2 of Article 78 TFEU, and paragraph 2 of Article 64 is replaced by paragraph 3 of Article 78 TFEU.

(38) Replaces the current Article 31 TEU.

(39) Replaces the current Article 30 TEU.

(40) Replaces the current Article 32 TEU.

(41)

- Article 140, paragraph 1 takes over the wording of paragraph 1 of Article 121.
- Article 140, paragraph 2 takes over the second sentence of paragraph 2 of Article 122.
- Article 140, paragraph 3 takes over paragraph 5 of Article 123.

(*continued*)

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Article 72	Article 92
Article 73	Article 93
Article 74	Article 94
Article 75	Article 95
Article 76	Article 96
Article 77	Article 97
Article 78	Article 98
Article 79	Article 99
Article 80	Article 100
Title VI – Common rules on competition, taxation and approximation of laws	Title VII – Common rules on competition, taxation and approximation of laws
Chapter 1 – Rules on competition	Chapter 1 – Rules on competition
Section 1 – Rules applying to undertakings	Section 1 – Rules applying to undertakings
Article 81	Article 101
Article 82	Article 102
Article 83	Article 103
Article 84	Article 104
Article 85	Article 105
Article 86	Article 106
Section 2 – Aids granted by States	Section 2 – Aids granted by States
Article 87	Article 107
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Article 89	Article 109
Chapter 2 – Tax provisions	Chapter 2 – Tax provisions
Article 90	Article 110
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Chapter 3 – Approximation of laws	Chapter 3 – Approximation of laws
Article 95 (moved)	Article 114
Article 94 (moved)	Article 115
Article 96	Article 116
Article 97	Article 117
	Article 118
Title VII – Economic and monetary policy	Title VIII – Economic and monetary policy
Article 4 (moved)	Article 119
Chapter 1 – Economic policy	Chapter 1 – Economic policy
Article 98	Article 120
Article 99	Article 121

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Article 100	Article 122
Article 101	Article 123
Article 102	Article 124
Article 103	Article 125
Article 104	Article 126
Chapter 2 – monetary policy	Chapter 2 – monetary policy
Article 105	Article 127
Article 106	Article 128
Article 107	Article 129
Article 108	Article 130
Article 109	Article 131
Article 110	Article 132
Article 111, paragraphs 1 to 3 and 5 (moved)	Article 219
Article 111, paragraph 4 (moved)	Article 138
	Article 133
Chapter 3 – Institutional provisions	Chapter 3 – Institutional provisions
Article 112 (moved)	Article 283
Article 113 (moved)	Article 284
Article 114	Article 134
Article 115	Article 135
	Chapter 4 – Provisions specific to Member States whose currency is the euro
	Article 136
	Article 137
Article 111, paragraph 4 (moved)	Article 138
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Article 116 (repealed)	
	Article 139
Article 117, paragraphs 1, 2, sixth indent, and 3 to 9 (repealed)	
Article 117, paragraph 2, first five indents (moved)	Article 141, paragraph 2
Article 121, paragraph 1 (moved) Article 122, paragraph 2, second sentence (moved) Article 123, paragraph 5 (moved)	Article 140 [42]
Article 118 (repealed)	

(42)

Article 141, paragraph 1 takes over paragraph 3 of Article 123.

Article 141, paragraph 2 takes over the first five indents of paragraph 2 of Article 117.

(continued)

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Article 123, paragraph 3 (moved) Article 117, paragraph 2, first five indents (moved)	Article 141 [43]
Article 124, paragraph 1 (moved)	Article 142
Article 119	Article 143
Article 120	Article 144
Article 121, paragraph 1 (moved)	Article 140, paragraph 1
Article 121, paragraphs 2 to 4 (repealed)	
Article 122, paragraphs 1, 2, first sentence, 3, 4, 5 and 6 (repealed)	
Article 122, paragraph 2, second sentence (moved)	Article 140, paragraph 2, first subparagraph
Article 123, paragraphs 1, 2 and 4 (repealed)	
Article 123, paragraph 3 (moved)	Article 141, paragraph 1
Article 123, paragraph 5 (moved)	Article 140, paragraph 3
Article 124, paragraph 1 (moved)	Article 142
Article 124, paragraph 2 (repealed)	
Title VIII – Employment	Title IX – Employment
Article 125	Article 145
Article 126	Article 146
Article 127	Article 147
Article 128	Article 148
Article 129	Article 149
Article 130	Article 150
Title IX – Common commercial policy (moved)	Part Five, Title II, common commercial policy
Article 131 (moved)	Article 206
Article 132 (repealed)	
Article 133 (moved)	Article 207
Article 134 (repealed)	
Title X – Customs cooperation (moved)	Part Three, Title II, Chapter 2, Customs cooperation
Article 135 (moved)	Article 33
Title XI – Social policy, education, vocational training and youth	Title X – Social policy
Chapter 1 – social provisions (repealed)	
Article 136	Article 151
	Article 152
Article 137	Article 153
Article 138	Article 154

(43) Replaced, in substance, by the second sentence of the second subparagraph of paragraph 1 of Article 208 TFUE.

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Article 139	Article 155
Article 140	Article 156
Article 141	Article 157
Article 142	Article 158
Article 143	Article 159
Article 144	Article 160
Article 145	Article 161
Chapter 2 – The European Social Fund	Title XI – The European Social Fund
Article 146	Article 162
Article 147	Article 163
Article 148	Article 164
Chapter 3 – Education, vocational training and youth	Title XII – Education, vocational training, youth and sport
Article 149	Article 165
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Title XII – Culture	Title XIII – Culture
Article 151	Article 167
Title XIII – Public health	Title XIV – Public health
Article 152	Article 168
Title XIV – Consumer protection	Title XV – Consumer protection
Article 153, paragraphs 1, 3, 4 and 5	Article 169
Article 153, paragraph 2 (moved)	Article 12
Title XV – Trans-European networks	Title XVI – Trans-European networks
Article 154	Article 170
Article 155	Article 171
Article 156	Article 172
Title XVI – Industry	Title XVII – Industry
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(continued)

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Article 165	Article 181
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	Title XXII – Tourism
	Article 195
	Title XXIII – Civil protection
	Article 196
	Title XXIV – Administrative cooperation
	Article 197
Title XX – Development cooperation (moved)	Part Five, Title III, Chapter 1, Development cooperation
Article 177 (moved)	Article 208
Article 178 (repealed) [44]	
Article 179 (moved)	Article 209
Article 180 (moved)	Article 210
Article 181 (moved)	Article 211
Title XXI – Economic, financial and technical cooperation with third countries (moved)	Part Five, Title III, Chapter 2, Economic, financial and technical cooperation with third countries
Article 181a (moved)	Article 212
PART FOUR – ASSOCIATION OF THE OVERSEAS COUNTRIES AND TERRITORIES	PART FOUR - ASSOCIATION OF THE OVERSEAS COUNTRIES AND TERRITORIES
Article 182	Article 198
Article 183	Article 199

(44) The second sentence of the second subparagraph of paragraph 1 replaces, in substance, Article 178 TEC.

Treaty on the Functioning of the European Union (*continued*)

Article 184	Article 200
Article 185	Article 201
Article 186	Article 202
Article 187	Article 203
Article 188	Article 204
	PART FIVE - EXTERNAL ACTION BY THE UNION
	Title I – General provisions on the union’s external action
	Article 205
Part Three, Title IX, Common commercial policy (moved)	Title II – Common commercial policy
Article 131 (moved)	Article 206
Article 133 (moved)	Article 207
	Title III – Cooperation with third countries and humanitarian aid
Part Three, Title XX, Development cooperation (moved)	Chapter 1 – development cooperation
Article 177 (moved)	Article 208 [45]
Article 179 (moved)	Article 209
Article 180 (moved)	Article 210
Article 181 (moved)	Article 211
Part Three, Title XXI, Economic, financial and technical cooperation with third countries (moved)	Chapter 2 – Economic, financial and technical cooperation with third countries
Article 181a (moved)	Article 212
	Article 213
	Chapter 3 – Humanitarian aid
	Article 214
	Title IV – Restrictive measures
Article 301 (replaced)	Article 215
	Title V – International agreements
	Article 216
Article 310 (moved)	Article 217
Article 300 (replaced)	Article 218
Article 111, paragraphs 1 to 3 and 5 (moved)	Article 219
	Title VI – The Union’s relations with international organisations and third countries and the Union delegations
Articles 302 to 304 (replaced)	Article 220

(45) Replaced, in substance, by Article 14, paragraphs 1 and 2, TEU.

(*continued*)

Treaty on the Functioning of the European Union (*continued*)

	Article 221
	Title VII – Solidarity clause
	Article 222
PART FIVE – INSTITUTIONS OF THE COMMUNITY	PART SIX – INSTITUTIONAL AND FINANCIAL PROVISIONS
Title I – Institutional provisions	Title I – Institutional provisions
Chapter 1 – The institutions	Chapter 1 – The institutions
Section 1 – The European Parliament	Section 1 – The European Parliament
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Article 190, paragraphs 1 to 3 (repealed) [47]	
Article 190, paragraphs 4 and 5	Article 223
Article 191, first paragraph (repealed) [48]	
Article 191, second paragraph	Article 224
Article 192, first paragraph (repealed) [49]	
Article 192, second paragraph	Article 225
Article 193	Article 226
Article 194	Article 227
Article 195	Article 228
Article 196	Article 229
Article 197, first paragraph (repealed) [50]	
Article 197, second, third and fourth paragraphs	Article 230
Article 198	Article 231
Article 199	Article 232
Article 200	Article 233
Article 201	Article 234
	Section 2 – The European Council
	Article 235
	Article 236
Section 2 – The Council	Section 3 – The Council
Article 202 (repealed) [51]	
Article 203 (repealed) [52]	
Article 204	Article 237

(46) Replaced, in substance, by Article 14, paragraphs 1 to 3, TEU.

(47) Replaced, in substance, by Article 11, paragraph 4, TEU.

(48) Replaced, in substance, by Article 14, paragraph 1, TEU.

(49) Replaced, in substance, by Article 14, paragraph 4, TEU.

(50) Replaced, in substance, by Article 16, paragraph 1, TEU and by Articles 290 and 291 TFEU.

(51) Replaced, in substance, by Article 16, paragraphs 2 and 9 TEU.

(52) Replaced, in substance, by Article 16, paragraphs 4 and 5 TEU.

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Article 205, paragraphs 2 and 4 (repealed) [53]	
Article 205, paragraphs 1 and 3	Article 238
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Article 207	Article 240
Article 208	Article 241
Article 209	Article 242
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Section 3 – The Commission	Section 4 – The Commission
Article 211 (repealed) [55]	
	Article 244
Article 212 (moved)	Article 249, paragraph 2
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Article 215	Article 246
Article 216	Article 247
Article 217, paragraphs 1, 3 and 4 (repealed) [58]	
Article 217, paragraph 2	Article 248
Article 218, paragraph 1 (repealed) [59]	
Article 218, paragraph 2	Article 249
Article 219	Article 250
Section 4 – The Court of Justice	Section 5 – The Court of Justice of the European Union
Article 220 (repealed) [60]	
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Article 221, second and third paragraphs	Article 251
Article 222	Article 252
Article 223	Article 253
Article 224 [62]	Article 254

(53) Replaced, in substance, by Article 295 TFEU.

(54) Replaced, in substance, by Article 17, paragraph 1 TEU.

(55) Replaced, in substance, by Article 19, paragraph 2, first subparagraph, of the TEU.

(56) Replaced, in substance, by Article 17, paragraphs 3 and 7 TEU.

(57) Replaced, in substance, by Article 17, paragraph 6, TEU.

(58) Replaced, in substance, by Article 295 TFEU.

(59) Replaced, in substance, by Article 19 TEU.

(60) Replaced, in substance, by Article 19, paragraph 2, first subparagraph, of the TEU.

(61) The first sentence of the first subparagraph is replaced, in substance, by Article 19, paragraph 2, second subparagraph of the TEU.

(62) Replaces, in substance, the third indent of Article 202 TEC.

(*continued*)

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	Article 255
Article 225	Article 256
Article 225a	Article 257
Article 226	Article 258
Article 227	Article 259
Article 228	Article 260
Article 229	Article 261
Article 229a	Article 262
Article 230	Article 263
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Article 244	Article 280
Article 245	Article 281
	Section 6 – The European Central Bank
	Article 282
Article 112 (moved)	Article 283
Article 113 (moved)	Article 284
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	Section 1 – The legal acts of the Union

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Article 249	Article 288
	Article 289
	Article 290 [63]
	Article 291 [63]
	Article 292
	Section 2 – Procedures for the adoption of acts and other provisions
Article 250	Article 293
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Article 252 (repealed)	
	Article 295
Article 253	Article 296
Article 254	Article 297
	Article 298
Article 255 (moved)	Article 15
Article 256	Article 299
	Chapter 3 – The Union’s advisory bodies
	Article 300
Chapter 3 – The Economic and Social Committee	Section 1 – The Economic and Social Committee
Article 257 (repealed) [64]	
Article 258, first, second and fourth paragraphs	Article 301
Article 258, third paragraph (repealed) [65]	
Article 259	Article 302
Article 260	Article 303
Article 261 (repealed)	
Article 262	Article 304
Chapter 4 – The Committee of the Regions	Section 2 – The Committee of the Regions
Article 263, first and fifth paragraphs (repealed) [66]	
Article 263, second to fourth paragraphs	Article 305
Article 264	Article 306
Article 265	Article 307
Chapter 5 – The European Investment Bank	Chapter 4 – The European Investment Bank

(63) Replaced, in substance, by Article 300, paragraph 2 of the TFEU.

(64) Replaced, in substance, by Article 300, paragraph 4 of the TFEU.

(65) Replaced, in substance, by Article 300, paragraphs 3 and 4, TFEU.

(66) Replaced, in substance, by Article 310, paragraph 4, TFEU.

(*continued*)

Treaty on the Functioning of the European Union (*continued*)

Article 266	Article 308
Article 267	Article 309
Title II – Financial provisions	Title II – Financial provisions
Article 268	Article 310
	Chapter 1 – The Union’s own resources
Article 269	Article 311
Article 270 (repealed) [67]	
	Chapter 2 – The multiannual financial framework
	Article 312
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Article 272, paragraph 1 (moved)	Article 313
Article 271 (moved)	Article 316
Article 272, paragraph 1 (moved)	Article 313
Article 272, paragraphs 2 to 10	Article 314
Article 273	Article 315
Article 271 (moved)	Article 316
	Chapter 4 – Implementation of the budget and discharge
Article 274	Article 317
Article 275	Article 318
Article 276	Article 319
	Chapter 5 – Common provisions
Article 277	Article 320
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Articles 11 and 11a (replaced)	Article 328 [68]
Articles 11 and 11a (replaced)	Article 329 [68]
Articles 11 and 11a (replaced)	Article 330 [68]
Articles 11 and 11a (replaced)	Article 331 [68]

(67) Also replaces the current Articles 27a to 27e, 40 to 40b, and 43 to 45 TEU.

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Articles 11 and 11a (replaced)	Article 332 [68]
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Article 303 (replaced)	Article 220
Article 304 (replaced)	Article 220
Article 305 (repealed)	

(68) Replaced, in substance, by Article 47 TEU.

(69) Replaced, in substance by Article 52 TEU.

(70) Replaced, in substance by Article 51 TEU.

(*continued*)

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Article 306	Article 350
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Article 299, paragraph 2, first subparagraph, and paragraphs 3 to 6 (moved)	Article 355
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Article 313	Article 357
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(71) Replaced, in substance by Article 55 TEU.

(72) Replaced, in substance by Article 55 TEU.

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